

## ORDINANCE NO. 3830

**ENTITLED: “AN ORDINANCE AMENDING SUB-SECTIONS (B) AND (C) OF SECTION 2.04.142, CONSENT AGENDA, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE, PERTAINING TO THE MEETING AGENDA FORMAT FOR REGULAR MEETINGS OF THE GOVERNING BODY OF THE CITY OF CHEYENNE.”**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That sub-sections (B) and (C) of Section 2.04.142(C), entitled Consent agenda, of Title 2, Administration and Personnel, of Chapter 2.04, Mayor and City Council, of the Cheyenne City Code, pertaining to the meeting agenda format for regular meetings of the governing body of the City of Cheyenne, are hereby amended as follows:

### **2.04.142 Consent agenda.**

B. The mayor, city clerk and city attorney will review and determine which agenda items should be included in the consent agenda. Similar to nonconsent agenda items, documentation pertaining to consent agenda items will be provided, in advance, to all members of the governing body and available for public inspection prior to the regular meeting.

1. Matters to be placed on the consent agenda will include referrals and those items that have been previously discussed by the governing body or reviewed at city council standing committees in which sufficient information has been obtained by governing body members that would not require further documentation or explanation, and those that are considered routine or self-explanatory in nature that passage without discussion is likely. Agenda items involving **ORDINANCES**, public meetings, hearings or public announcements will not be included in a consent agenda.

C. All items listed on a consent agenda are intended to be considered by the governing body as a single item enacted by one motion to approve with vote. The motion shall be nondebateable, unless a member of the governing body requests a procedural clarification, and will have the effect of moving to approve all items designated as being included on the consent agenda. ~~Since approval of consent agenda items implies unanimous consent by those members in attendance,~~ any member of the governing body present shall have the right to request, upon their own initiative or in response to an audience request, without vote or debate, that any item(s) be removed from the consent agenda. ~~Audience members may request any member of the governing body to remove one item from the consent agenda.~~ **SUCH ITEM(S) SHALL BE REMOVED FROM THE CONSENT AGENDA IF THE REQUEST IS SUPPORTED BY AT LEAST TWO OTHER MEMBERS OF THE GOVERNING BODY. THE SUPPORTING MEMBERS MAY LIMIT THEIR SUPPORT TO ONE OR MORE, OR ALL OF THE ITEMS. AUDIENCE MEMBERS MAY REQUEST**

**ANY MEMBER OF THE GOVERNING BODY TO REMOVE ITEM(S) FROM THE CONSENT AGENDA.** Prior to calling for a motion to approve, the mayor will inquire whether a member of the governing body wishes to remove any item(s) from the consent agenda. If a request is made to remove an item(s) **AND REQUIRED SUPPORT OF TWO OTHER MEMBERS IS ALSO RECEIVED**, the mayor will announce the item(s) **FOR WHICH A REQUEST AND THE REQUIRED SUPPORT WAS RECEIVED** has been removed and the item(s) so removed will then be acted upon in the normal agenda sequence as for nonconsent agenda items. Items on the consent agenda for referral to committee are exempt from removal.

1. Approval of a motion to approve the consent agenda shall be fully equivalent to approval, adoption or enactment of each consent agenda item as if each item had been acted upon individually.

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: September 22, 2008

SECOND READING: October 13, 2008

THIRD AND FINAL READING: October 27, 2008

(S E A L)

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JACK R. SPIKER, MAYOR

ATTEST:

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CAROL INTLEKOFER, CITY CLERK

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